

26STCV03754 26STCV03754

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-24

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Case Number: 26STCV03754 Hearing Date: August 24, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the August 24, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status

Conference. If all parties submit on the

tentative minute order prior to the commencement of the August 24, 2026 ISC,

the Court will adopt the tentative minute order, and the parties need not

appear. However, if there is any matter

that any party would like to discuss, including any proposed change to this

tentative minute order, that party should not submit on this tentative but

instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with

Department 9 court staff and wait for the case to be called unless you receive

notification that all parties have submitted on the tentative minute order.

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[TENTATIVE] MINUTE

ORDER

All Defendants are

ordered to file a timely Notice of Appearance within 30 days of service of the operative Summons and Complaint on them.

If any named

Defendant fails to timely respond to service of the operative Summons and

Complaint by filing a Notice of Appearance, Plaintiff must timely seek and

obtain entry of default against all such named Defendants who fail to timely

file a Notice of Appearance.

Plaintiff has

filed a notice of acknowledgement of receipt of the operative Summons and Complaint as to certain defendants who have not timely responded to service of the operative Summons and Complaint, including GATE GOURMET, INC.

The time to

respond for these defendants who have been served has already lapsed.

Defendant has

failed to file a Notice of Appearance.

Nor have the parties filed a Joint Initial Status Report as ordered.

The Court reminds

the parties that ultimately, the Court may not enter default judgment in an amount exceeding the amount demanded in the Complaint. (CCP 585(b).)

The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.*

(2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). "It is

fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him." (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [emphasis added].) Accordingly,

prior to seeking any Defendant's default, Plaintiff may wish to review the operative

Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for

Plaintiff to seek entry of Defendant's default without first amending the

Complaint to clearly state and give notice of the amount of damages that

Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If

Defendant again fails to respond upon being served with the amended complaint,

a request for entry of Defendant's default on the Amended Complaint may then

possibly lead to a request for entry of default judgment in an amount equal to

or less than that stated in the Amended Complaint. To be clear, the Court is not ordering

Plaintiff to amend the operative Complaint; if, after considering the above, Plaintiff voluntarily wishes to amend the operative Complaint to give notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than September

11, 2026, Plaintiff's Counsel must file either a request for entry of GATE GOURMET, INC's default or a declaration explaining the failure to seek and obtain GATE GOURMET, INC's default, setting forth any and all efforts undertaken to obtain GATE GOURMET, INC's default, and explaining why sanctions (including monetary sanctions of at least \$1,000) should not be imposed for failure to timely seek GATE GOURMET, INC's default, in compliance with California Rules of Court, Rule 3.720. Failure to comply by September 11, 2026 may result in the Court setting an OSC re sanctions.

The operative

complaint currently does not include any claim for civil penalties pursuant to Labor Code section 2699 (PAGA penalties).

If Plaintiff wishes to amend the Complaint to add a claim for PAGA penalties and is prepared to do so, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint adding a claim for PAGA penalties as long as Plaintiff files and serves such amended complaint by no later than September 11, 2026. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if Plaintiff voluntarily wishes to amend the operative Complaint to add a claim for PAGA penalties, the Court is simply granting leave for Plaintiff to do so. By no later than September 11, 2026, Plaintiff must file and serve a status report as to whether Plaintiff intends to file either a separate action for PAGA penalties or an amended complaint in the instant action adding a claim for PAGA penalties, and if so, when Plaintiff intends to file the claim for PAGA penalties (either as a complaint in a separate action or by way of amendment to the complaint in this action).

The previously

imposed stay on the entirety of this action (including the pleadings and discovery) remains in effect with the exception that if Plaintiff wishes, Plaintiff may file and serve an amended complaint adding a PAGA claim and adding allegations to give notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment.

The Initial Status

Conference is continued to October 16, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than October 9, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.